

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1419

By: West (Josh)

AS INTRODUCED

An Act relating to motor vehicles; amending 47 O.S. 2021, Section 1-171.1, which relates to street-legal utility vehicles; modifying definition; amending 47 O.S. 2021, Section 11-1116, which relates to self-propelled or motor-driven and operated vehicles; updating statutory reference; authorizing use of certain vehicles on certain U.S. Highways; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 1-171.1, is amended to read as follows:

Section 1-171.1. Street-legal utility vehicle.

A. A "street-legal utility vehicle" is any motor vehicle having:

1. A bench seat or side-by-side seat for the use of each rider;
2. Four wheels in contact with the ground, but excluding a tractor;

1 3. A combustion engine with a piston or rotor displacement of
2 four hundred cubic centimeters (400 cc) or greater and capable of
3 maintaining speeds of ~~forty-five (45)~~ fifty (50) miles per hour or
4 greater;

5 4. For each occupant, safety belts or safety shoulder harnesses
6 which shall be of a type and shall be installed pursuant to 49
7 C.F.R., Section 571.208 et seq.; and

8 5. All equipment required by the provisions of Sections 12-201
9 through 12-232 of Title 47 of the Oklahoma Statutes, with respect to
10 equipment on vehicles.

11 B. A street-legal utility vehicle operated on the streets and
12 highways of this state shall be registered as a motor vehicle.

13 C. The operator of a street-legal utility vehicle shall not be
14 required to have an "M" endorsement on the Class D license pursuant
15 to Section 6-110.1 of Title 47 of the Oklahoma Statutes. The
16 operator shall be at least sixteen (16) years of age and hold a
17 valid Oklahoma driver license.

18 SECTION 2. AMENDATORY 47 O.S. 2021, Section 11-1116, is
19 amended to read as follows:

20 Section 11-1116. A. The self-propelled or motor-driven and
21 operated vehicles described in this section shall be prohibited from
22 operating or shall be limited in operation on the streets and
23 highways of this state.

1 B. Self-propelled or motor-driven cycles, known and commonly
2 referred to as "minibikes" and other similar trade names, shall be
3 prohibited from operating on the streets and highways of this state,
4 except:

5 1. When used in a parade; or

6 2. When registered, as required by subsection E of Section 1151
7 of this title, and operated in this state by food vendor services
8 upon streets having a speed limit of thirty (30) miles per hour or
9 less.

10 All minibikes offered for sale in this state shall bear the
11 following notice to the customer: "This machine is not manufactured
12 or sold for operation on the public streets or highways. Since it
13 is not provided with equipment required by law for street or highway
14 use, all persons are cautioned that any operation of this vehicle
15 upon a public street or highway will be in violation of the motor
16 vehicle laws of this state and will subject the violator to arrest."

17 C. Golf carts and utility vehicles, as defined by Section 1102
18 of this title, shall not be operated on the streets and highways of
19 this state except:

20 1. Golf carts or utility vehicles owned by the Oklahoma Tourism
21 and Recreation Department, and operated by employees or agents of
22 the Department or employees of independent management companies
23 working on behalf of the Department, may be operated on the streets
24 and highways of this state during daylight hours or under rules

1 developed by the Oklahoma Tourism and Recreation Commission, when
2 the streets and highways are located within the boundaries of a
3 state park. The Department shall have warning signs placed at the
4 entrance and other locations at those state parks allowing golf
5 carts or utility vehicles to be operated on the streets and highways
6 of this state located within the boundaries of those state parks.
7 The warning signs shall state that golf carts and utility vehicles
8 may be operating on streets and highways and that motor vehicle
9 operators shall take special precautions to be alert for the
10 presence of golf carts or utility vehicles on the streets and
11 highways;

12 2. The municipal governing body has adopted an ordinance
13 governing the operation of golf carts and/or utility vehicles on
14 city streets; provided, such ordinances shall include necessary
15 vehicle lighting and safety requirements;

16 3. Golf carts or utility vehicles may operate on state highways
17 only if making a perpendicular crossing of a state highway located
18 within the boundaries of a municipality which has adopted an
19 ordinance governing the operation of golf carts and/or utility
20 vehicles;

21 4. The board of county commissioners of a county has approved
22 the operation of golf cart and/or utility vehicle traffic on
23 roadways within the county, and:
24

1 a. the roadway has a posted speed limit of twenty-five
2 (25) miles per hour or less,

3 b. the roadway is located in an unincorporated area, and

4 c. appropriate signage, cautioning motorists of the
5 possibility of golf cart or utility vehicle traffic,
6 is erected by the board of county commissioners; or

7 5. Street-legal utility vehicles that are registered as a motor
8 vehicle pursuant to ~~subsection B of~~ Section ~~±~~ 1-171.1 of this act
9 title may be operated on the streets and highways of this state and
10 U.S. Highways in counties whose population is less than seventy-five
11 thousand (75,000) according the latest Federal Decennial Census
12 data. Provided, however, street-legal utility vehicles shall not
13 be operated on the National System of Interstate and Defense
14 Highways ~~or U.S. highways.~~

15 D. All-terrain vehicles shall not be operated on the streets
16 and highways of this state, except:

17 1. On unpaved roads which are located within the boundaries of
18 any property of the Forest Service of the United States Department
19 of Agriculture;

20 2. On highways if:

21 a. the vehicle needs to make a direct crossing of the
22 highway while the vehicle is traveling upon a
23 regularly traveled trail and needs to continue travel
24 from one area of the trail to another and, if the

1 vehicle comes to a complete stop, yields the right-of-
2 way to all oncoming traffic that constitutes an
3 immediate hazard, and crosses the highway at an angle
4 of approximately ninety (90) degrees to the direction
5 of the street or highway. This exception shall not
6 apply to divided highways or highways with a posted
7 speed limit of more than thirty-five (35) miles per
8 hour in the area of the crossing,

9 b. the vehicle needs to travel on a highway in order to
10 cross a railroad track. In that event, the all-
11 terrain vehicle may travel for not more than three
12 hundred (300) feet on a highway to cross a railroad
13 track,

14 c. the operator of the all-terrain vehicle making the
15 crossing at a highway has a valid driver license, and

16 d. the operator of the vehicle makes a crossing on a
17 highway during daylight hours only;

18 3. On streets and highways within a municipality if the
19 municipal governing body has adopted an ordinance governing the
20 operation of golf carts, utility vehicles or all-terrain vehicles on
21 streets and highways within the municipality; or

22 4. On roadways within unincorporated areas of a county if those
23 roadways are not part of the state highway system or the National
24

1 System of Interstate and Defense Highways; provided, however, that
2 the driver is a licensed driver.

3 E. Mopeds, as defined by Section 1-133.2 of this title, may be
4 operated on the streets and highways of this state if:

5 1. The municipal governing body has adopted an ordinance
6 governing the operation of mopeds on city streets; provided, such
7 ordinances shall include necessary vehicle lighting and safety
8 requirements; or

9 2. The board of county commissioners of a county has approved
10 the operation of mopeds on roadways within the county, not including
11 roadways within a municipality.

12 SECTION 3. This act shall become effective November 1, 2025.

13
14 60-1-10068 JBH 01/07/25
15
16
17
18
19
20
21
22
23
24